



BERNHARDT RILEY
— ATTORNEYS AT LAW —

August 28, 2025

Sent via certified and electronic mail:

Northland Terra Bella LLC
Village at Terra Bella
23700 Viento Drive
Land O' Lakes, Florida 34639
villageterrabellaapts@northland.com
ihearn@northland.com

Filejet Inc.
625 East Twiggs Street
Suite 110
Tampa, Florida 33602
Tracking No.:

RE: **Demand Letter Regarding the Apartment Lease Contract**
Property Address: 2260 Terra Cotta Cove, Apt. 110, Land O' Lakes, Florida 34639

To whom it may concern:

Our law firm has been retained by Clifton Price (hereinafter "Client") regarding the above-referenced property (the "Property"). Our Client has retained our representation concerning the lease agreement (the "Contract"). Accordingly, kindly direct all future communications and related correspondence regarding this matter to our attention.

Review

On or about August 1, 2024, our Client took possession of the Property pursuant to the Contract. Within days of occupancy, our Client began experiencing recurring water intrusion in the bedroom after rainfall.

Despite repeated maintenance requests, the problem persisted. Initial efforts—including a temporary trench to address improper grading—failed to prevent further flooding, pooling water, and wall saturation. Professional inspections, including reports by ServPro, documented unsafe moisture levels and potential mold growth.

Between August and October 2024, the water intrusion continued, with management and contractors either delaying effective repairs or minimizing the severity of the problem. Although some regrading was performed, subsequent rain events confirmed that the issue remains unresolved.

The prolonged water intrusion has left the unit vulnerable to mold growth, compromising habitability, health, and safety.

Personal Injury Criminal Defense Debt Defense Real Estate Litigation Business Formation

Palm Harbor
2706 Alternate US-19 N.
Suite 213
Palm Harbor, FL 34683

Clearwater
13575 58th St N.
Clearwater, FL 33760

Tampa
1228 E. 7th Avenue
Tampa, FL 33605

Northwest Florida
495 Grand Blvd. #206
Miramar Beach, FL 32250

www.BRFlorida.com

Our Client's objective is straightforward: to compel the landlord and property management company to properly remediate the water intrusion and potential mold issue, particularly since recent grading efforts have not resolved the problem.

Authority

Contractual Duties

Under the terms of the Contract, the Landlord has an explicit obligation to maintain the Property in a habitable condition and to make all reasonable repairs necessary to ensure safety and habitability. Florida law makes clear that ambiguities in a lease contract are construed against the landlord. See *Homestead v. Johnson*, 760 So.2d 80 (Fla. 2000).

Florida Statutory Requirements

Florida law also imposes non-waivable duties on landlords. Under **Fla. Stat. §83.51(1)**, landlords must:

- Comply with applicable building, housing, and health codes; and
- Where no codes apply, maintain roofs, windows, doors, floors, exterior walls, foundations, and other structural components in good repair and capable of resisting normal forces and loads.

Indeed, a landlord's obligation to maintain its rental property is also outlined in the Florida Residential Landlord and Tenant Act. Florida Statute §83.51 establishes a landlord's maintenance obligations:

83.51 Landlord's obligation to maintain premises.

(1) The landlord at all times during the tenancy shall:

(a) Comply with the requirements of applicable building, housing, and health codes; or
(b) Where there are no applicable building, housing, or health codes, maintain the roofs, windows, doors, floors, steps, porches, exterior walls, foundations, and all other structural components in good repair and capable of resisting normal forces and loads and the plumbing in reasonable working condition.

(2)(a) Unless otherwise agreed in writing, in addition to the requirements of subsection (1), the landlord of a dwelling unit other than a single-family home or duplex shall, at all times during the tenancy, make reasonable provisions for:

- 1. The extermination of rats, mice, roaches, ants, wood-destroying organisms, and bedbugs. When vacation of the premises is required for such extermination, the landlord is not liable for damages but shall abate the rent. The tenant must temporarily vacate the premises for a period of time not to exceed 4 days, on 7 days' written notice, if necessary, for extermination pursuant to this subparagraph.*
- 2. Locks and keys.*
- 3. The clean and safe condition of common areas.*
- 4. Garbage removal and outside receptacles therefor.*

Additionally, under **§83.51(2)**, landlords must make reasonable provisions for the safe condition of the property. Failure to uphold these obligations constitutes a material breach of the lease and a violation of statutory duty.

Tenant Remedies

Florida Statute §83.56(1) provides that if a landlord materially fails to comply with §83.51(1) or with material provisions of the lease, and fails to cure within seven (7) days of written notice, the tenant may terminate the lease or seek alternative remedies. Specifically:

- If the unit is rendered **untenantable** and the tenant vacates, rent abatement applies;
- If the tenant remains in possession, rent must be reduced proportionately to the loss of rental value.

Further, prolonged exposure to water intrusion and mold may constitute **constructive eviction**, as recognized under Florida law, where conditions are intolerable such that the tenant cannot reasonably remain.

Breach of Warranty of Habitability & Breach of Contract

The ongoing water intrusion, failure to remediate mold risk, and delays in repair obligations amount to a breach of both the implied warranty of habitability and the express obligations under the Contract. See *Murciano v. Garcia*, 958 So. 2d 423 (Fla. 3d DCA 2007) (elements of breach of contract include existence of valid contract, material breach, and resulting damages).

Demand

Based on the foregoing, please let this correspondence serve as a formal **demand** that you:

1. Immediately and fully remediate the water intrusion, including permanent corrective action to the foundation grading and sealing of all points of water entry;
2. Retain a licensed mold assessor to conduct a full indoor air quality and mold inspection, with results provided to our Client;
3. If mold is identified, retain a licensed mold remediation specialist to complete all required remediation within fifteen (15) days of the assessment; and
4. Confirm, in writing, the specific steps taken and timeline for completion.

Should we fail to receive a response **within ten (10) calendar days from the date of receipt of this letter**, we will assume you intend to reject this demand and will proceed by taking any necessary legal actions afforded to our Client.

Thank you for your prompt and timely attention to this matter and we look forward to your compliance with the above. Please do not hesitate to reach out to our office at (727) 275-9575 or via e-mail at chevonne@brflorida.com and cc: lourdes@brflorida.com, should you wish to further discuss.

Sincerely,

/s/ Chevonne Christian

Chevonne Christian, Esq.

Division Attorney

Bernhardt Riley, Attorneys at Law, PLLC

Attorneys for Clifton Price